MINISTRY OF ENVIRONMENT, FOREST AND CLIMATE CHANGE

NOTIFICATION

New Delhi, the 22nd October, 2024

G.S.R. 665(E).—In exercise of the powers conferred by section 62 of the Biological Diversity Act, 2002 (18 of 2003) and in supersession of the Biological Diversity Rules, 2004, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely: -

1. Short title and commencement. – (1) These rules may be called the Biological Diversity Rules, 2024.

(2) They shall come into force on expiry of sixty days from the date of their notification in the Official Gazette.

2. Definitions. – (1) In these rules, unless the context otherwise requires, -

(a) "Act" means the Biological Diversity Act, 2002 (18 of 2003);

(b) "Authority" means the National Biodiversity Authority established under sub-section (1) of section 8 of the Act;

(c) "Adjudicating Officer" means any officer appointed under section 55A of the Act;

(d) "Biodiversity Management Committee" means a Biodiversity Management Committee established under sub-section (1) of section 41 of the Act;

(e) "Chairperson" means the Chairperson of the Authority;

(f) "fee" means any fee as specified in the First Schedule to these rules;

(g) "Form" means a Form specified under the Second Schedule to these rules;

(h) "Member" means a member of the Authority and includes the Chairperson and the Member Secretary;

(i) "Member-Secretary" means a full time Secretary of the Authority, or of the State Biodiversity Board or of the Union territory Biodiversity Council, as the case may be.

(2) Words and expressions used but not defined in these rules and defined in the Act shall have the meanings respectively assigned to them in the Act.

3. Manner of selection and appointment of Chairperson.– (1) The Chairperson shall be appointed by the Central Government.

(2) Every appointment of Chairperson under sub-rule (1) shall be made either on deputation basis including short-term contract or by selection from outside the Government and incase, the appointment is through deputation from the Government or a short-term contract, the applicant shall not be below the rank of Additional Secretary to the Government of India.

4. Term of office of the Chairperson.– (1)The Chairperson shall hold office for a term of three years' from the date of publication of appointment and shall be eligible for re-appointment:

Provided that no Chairperson shall hold office as such after he attains the age of sixty-five years or his term of office expires whichever is earlier.

(2) The Chairperson may resign from the office by giving one-month notice in writing to the Central Government.

5. Pay and allowances.– (1) A Chairperson shall be entitled to a pay equivalent to that of a Secretary to the Government of India**.**

(2) In case, a retired person is appointed as Chairperson, pay shall be fixed in accordance with the extant orders of the Central Government as applicable to such persons.

(3) A Chairperson shall be entitled to such allowances, leave, pension, provident fund, medical facilities**,** rent free accommodation or house rent allowance, other perquisites, as are admissible to the officers of the Central Government of equivalent rank**.**

6. Term of office and allowances of non-official Members.– (1) Every non-official member shall hold office for a term not exceeding three years at a time from the date of publication of appointment of such member in the Official Gazette.

(2) Every non-official member attending the meeting of the Authority shall be entitled to sitting allowance, travelling expenses, daily allowance and such other allowances as are applicable to non-official member of Commissions and Committees of the Central Government attending the meetings of such Commission or Committee.

7. Filling of vacancies of non-official Members.– (1) A non–official member may resign from office at any time by giving one month notice in writing addressed to the Central Government under intimation to the Chairperson.

(2) On acceptance of the resignation by the Central Government or on the expiry of the period of notice**,** the seat of that member in the Authority shall become vacant.

(3) A casual vacancy of a non–official member shall be filled up by a fresh nomination and the person nominated to fill the vacancy shall hold office only for the remainder of the term of the member in whose place such member was nominated.

8. Removal of the Members.– No Member shall be removed from office on any ground specified in section 11 of the Act, without conducting an inquiry by the Central Government and without giving such member a reasonable opportunity of being heard.

9. Member-Secretary.– (1) The Central Government shall appoint a Member-Secretary to the Authority.

(2) The Member-Secretary shall be entitled to pay equivalent to that of a Joint Secretary to the Government of India.

(3) The terms and conditions of appointment of the Member-Secretary shall be determined by the Central Government.

(4) The Member-Secretary shall be responsible for convening the meetings of the Authority, maintenance of the records of the proceedings of the Authority and such other matters as may be assigned to him by the Authority or by the Chairperson.

(5) The Member-Secretary shall be in-charge of all the papers and records of the Authority and shall be responsible for their safe custody.

(6) All directions, resolutions, orders and instructions issued by the Authority generally shall be under the seal and signature of the Member-Secretary or any other officer authorised by the Chairperson in this behalf.

10. Meetings of Authority.– (1) The Authority shall meet at least once in three months in a year at the Headquarters of the Authority or at such place as may be decided by the Chairperson.

(2) The Chairperson shall, upon a written request from not less than six members of the Authority or upon a direction of the Central Government, call a special meeting of the Authority.

(3) The members shall be given at least fifteen days' notice for holding an ordinary meeting and at least three days' notice for holding a special meeting specifying the purpose, the time and the place at which such meeting is to be held:

Provided that the Chairperson may authorise convening an emergency meeting of the Authority by giving a short notice to the members for considering and taking decisions on urgent matters.

(4) Every meeting shall be presided over by the Chairperson and in the absence of the Chairperson, a presiding officer to be elected in the presence of Member-Secretary from amongst the members present.

(5) The decisions of the Authority at a meeting shall, if necessary, be taken by a simple majority of the members present and voting and the Chairperson or in absence of the Chairperson, the member presiding shall have a second or casting vote.

(6) Each member including the Member-Secretary shall have one vote**.**

(7) The quorum at every meeting of the Authority shall be seven.

(8) A member shall be entitled to bring forward any matter for the consideration of the Authority in its meeting of which he has given ten days' notice or the Chairperson in his discretion permits to do so.

(9) Notice of the meeting may be given to the members by the Member-Secretary of the Authority electronically or in such other manner as deemed fit in the circumstances of the case.

11. General functions of Authority. – The Authority may,-

(a) administer the National Biodiversity Fund;

(b) sanction grants to the State Biodiversity Boards or Union territory Biodiversity Councils and Biodiversity Management Committees for specific purposes;

(c) decide on the format and contents of the mutually agreed terms of the various agreements to be executed between the parties embodying the approvals of the Authority;

(d) provide technical and legal advice, clarifications and guidance to the State Biodiversity Boards or Union territory Biodiversity Councils for implementing the provisions of the Act;

(e) coordinate the activities of the State Biodiversity Boards and the Union territory Biodiversity Councils;

(f) specify the electronic and/ or manual formats of the People's Biodiversity Register and lay down the procedure for documentation of information related to biodiversity, its periodic updating, securely maintaining it in an electronic or digitised form and for sharing of such information;

(g) develop databases and documentation systems for biological resources and traditional knowledge associated thereto through People's Biodiversity Registers in a given geographical area;

(h) provide guidance and technical support to the Biodiversity Management Committees through the State Biodiversity Board or Union territory Biodiversity Council or directly, if required for preparation, validation and maintenance of Biodiversity Registers;

(i) report to the Central Government about the functioning of the Authority and implementation of the Act;

(j) inspect any area and examine documents in connection with the implementation of the Act;

(k) collect, compile and publish technical and statistical data, manuals, codes or guides relating to biodiversity including conservation, sustainable use of its components, and fair and equitable sharing of benefits arising out of the use of biological resources and knowledge associated thereto;

(l) sponsor studies, research, investigations, projects, workshops, seminars, conferences, etc., to achieve the objectives of the Act;

(m) create awareness and organise training and capacity building programmes for all stakeholders including the line departments and academic, scientific and research institutions for achieving the objectives of the Act;

(n) prepare the annual budget, maintain proper accounts and other relevant records, and prepare an annual statement of accounts in such form, as may be prescribed by the Central Government;

(o) frame regulations governing the recruitment and conditions of service of the officials of the Authority;

(p) engage consultants and advisors, for a specific period, not exceeding three years, for providing assistance to the Authority for the effective discharge of its functions:

Provided that if it is necessary and expedient to engage any consultant or advisor beyond a period of three years, the Authority shall seek prior approval of the Central Government.

(q) recommend creation of posts, periodic revision of recruitment rules, pay and allowances and terms and conditions of service to the Central Government for effective discharge of the functions by the Authority;

(r) function as a Competent National Authority for the purposes of Nagoya Protocol on access to genetic resources and the fair and equitable sharing of benefits arising from their utilization to the Convention on Biological Diversity;

(s) adjudicate the disputes of State Biodiversity Boards and Union territory Biodiversity Councils as referred to by the Central Government;

(t) lay down model guidelines for adjudicating disputes of the Biodiversity Management Committees by the State Biodiversity Boards or Union territory Biodiversity Councils;

(u) develop procedures, in consultation with the State Biodiversity Boards or Union territory Biodiversity Councils, National Medicinal Plants Board, or any other authority as deemed appropriate, for seeking exemption under sub-section (1) of section 7 of the Act on production of a certificate of origin of cultivated medicinal plants;

(v) suggest guidelines for framing rules by the State Government or Union territory Administration for conservation and management of the areas of biodiversity importance notified as biodiversity heritage sites;

(w) formulate model guidelines for collection of fee by the Biodiversity Management Committees for accessing biological resources from their jurisdiction;

(x) facilitate the Biodiversity Management Committees, whenever necessary, for providing prior informed consent by the local communities for access to biological resources and the traditional knowledge associated thereto;

(y) develop a online Information Technology portal for the discharge of its various functions under the Act in a transparent and accountable manner.

12. Powers and duties of Chairperson. – (1) The Chairperson shall have overall control of the day-to-day activities of the Authority.

(2) The Chairperson shall have the powers of general superintendence over the officials of the Authority and issuing necessary directions for the conduct and management of the functions of the Authority.

(3) The Chairperson, either directly or through the Member-Secretary or any other officer of the Authority authorised for the purpose, may sanction and disburse all payments against the approved budget.

(4) The Chairperson shall have powers for granting administrative, financial and technical sanctions to all the proposals.

(5) The Authority may delegate any of its power under section 16 of the Act to the Member-Secretary or to any officer of the Authority not below the rank of a Section Officer in the Government of India.

(6) The Chairperson shall take all necessary measures for the implementation of all decisions taken by the Authority in proper manner**.**

(7) In case of any present and imminent emergency situations like epidemics and pandemics particularly those that threaten, or damage human, animal or plant health as determined at national and international level, the Chairperson may exercise the powers of the Authority for granting expeditious approvals and shall place all such approvals before the next meeting of the Authority for approval.

(8) The Chairperson shall exercise such other powers and perform such other functions as may be delegated to him by the Authority or the Central Government from time to time.

13. Procedure for access to biological resources and knowledge associated thereto. – (1) Any person, referred to in sub-section (2) of section 3 of the Act, seeking approval of the Authority for access to biological resources and knowledge associated thereto for research or for bio-survey and bio-utilisation shall make an application on the web portal of the Authority in Form 1, and for commercial utilisation shall make an application on the web portal of the Authority in Form 2.

(2) Any person, referred to in sub-section (2) of section 3 of the Act**,** who was in possession of a biological resource before the coming into force of the Biological Diversity (Amendment) Act, 2023, shall seek approval of the Authority for the purpose of research, commercial utilisation, bio-survey and bio-utilisation.

(3) Every application under sub-rule (1) shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund.

(4) The Authority may, after consultation with the Biodiversity Management Committee either directly or through State Biodiversity Board or Union territory Biodiversity Council, and after collecting such additional information from the applicant and other sources, as required, and based on the merits of the application, may grant approval subject to terms and conditions, including benefit sharing, or reject, as deemed fit within a period of ninety days from the receipt of the application in complete form**:**

Provided that if the requisite information sought by the Authority has not been made available by the applicant within a period of thirty days from the date of seeking information, the application shall be closed and applicant shall be informed about the closure:

Provided further that the Biodiversity Management Committee before conveying its views to the Authority, may consult, wherever required, the community, individual or entity concerned to whom the bio-resource belongs to, as the case may be, to ensure their prior informed consent**:**

Provided also that in cases of present or imminent emergencies situation, the Authority shall process the application expeditiously.

(5) The approval to access shall be in the form of an agreement on mutually agreed terms duly signed by an authorised officer of the Authority and the applicant:

Provided that the application is deemed to be closed, if the applicant does not sign the agreement within a period of sixty days from the date of communication of the draft agreement by the Authority, upon intimation to the applicant:

Provided further that such closed application may be revived on receipt of payment of the half of the fee specified for fresh application under sub–rule (3) within a period of ninety days.

(6) The Authority may for reasons to be recorded in writing**,** reject an application if it considers that the request cannot be acceded to:

Provided that the application shall not be rejected unless the applicant has been given a reasonable opportunity of being heard.

(7) The Authority shall publicise all the approvals granted or rejected on its website and shall also ensure that such information is shared with other agencies, as may be required**.**

(8) The compliance with the terms and conditions of the agreement shall be monitored by the Authority by involving State Biodiversity Board or Union territory Biodiversity Council, Biodiversity Management Committee or any other agency as deemed appropriate by the Authority**.**

14. Restricting access to biological resources and knowledge associated with such biological resources. –(1)The Authority after conducting such enquiry as deemed appropriate in respect of any provisions of this rule, shall take steps to restrict or prohibit access to biological resources or knowledge associated with such biological resources for the following reasons, namely:-

(a) the request for access is for any threatened and/ or endemic species including those notified under section 38 of the Act;

(b) the request for access may result in an adverse impact on the livelihood and/ or socio-cultural aspects of the local communities;

(c) the request for access may result in adverse environmental impact(s)which may be difficult to control and mitigate;

(d) the request for access may cause genetic erosion or affect the ecosystem functions including in the areas notified under section 37 of the Act;

(e) the request is for the use of resources for purposes contrary to national interest and other related international agreements entered into by India;

(f) for any other reasons to be recorded in writing.

(2) Notwithstanding sub–rule (1), the Authority may permit access to cultivated species mentioned under clause (a) to (e) of that sub-rule depending on merits of each case for a specific period.

15. Procedure for seeking approval for sharing or transferring results of research to persons covered under sub-section (2) of section 3 of the Act.– (1) Any person who intends to share or transfer any result of the research relating to biological resources or traditional knowledge associated thereto to persons covered under sub-section (2) of section 3 of the Act shall make an application on the web portal of the Authority in the following Forms, namely :-

(a) Form 3 for seeking prior approval of the Authority by any person for sharing or transferring the results of research to persons covered under sub-section (2) of section 3 of the Act for commercial purposes or otherwise;

(b) Form 4 for registration by the transferee (persons covered under sub-section (2) of section 3 of the Act) to use the results of research for further research;

(c) Form 5 for seeking prior approval of the Authority to use the results of research for commercial utilisation by the transferee (persons covered under sub-section (2) of section 3 of the Act);

(d) Form 6 for seeking prior approval of the Authority to use the results of research for obtaining intellectual property rights by the transferee (persons covered under sub-section (2) of section 3 of the Act).

(2) Every application under sub–rule (1) shall be accompanied by a fee paid in an electronic transfer or digital payment form to the National Biodiversity Fund.

(3) The Authority after collecting such additional information from the applicant and other sources, as required, and based on the merits of the application, may grant approval subject to such terms and conditions including benefit sharing, or reject, as deemed fit, within a period of ninety days for receipt of the application under sub-rule (1):

Provided that if the requisite information sought by the Authority has not been made available by the applicant within a period of thirty days from the date of seeking information, the application shall be closed and the applicant shall be informed about the closure.

Provided that the application shall not be rejected unless the applicant has been given a reasonable opportunity of being heard.

(4) The approvals referred under this rule shall be granted in the form of an agreement on mutually agreed terms duly signed by an authorised officer of the Authority and the applicant:

Provided that the application is deemed to be closed, if the applicant does not sign the agreement within a period of sixty days from the date of communication of the draft agreement by the Authority, upon intimation to the applicant:

Provided further that such closed application may be revived on receipt of payment of half of the fee specified for fresh application under sub–rule (2) within a period of ninety days.

(5) If the Authority is of the opinion that activities referred to in the registration made under clause(b) of sub-rule (1) are detrimental or contrary to the objectives of the Act, it may by order, prohibit or restrict any such activity.

(6) The applicant so registered with the Authority under clause (b) sub-rule (1) shall submit periodic status report as may be required by the Authority.

16. Procedure for registration and obtaining prior approval from Authority before grant of intellectual property rights.– (1) Procedure for seeking prior approval before grant of intellectual property rights by any person referred to in sub-section (2) of section 3 of the Act shall be as follows, namely:-

(a) Any person referred to in sub-section (2) of section 3 of the Act, applying for any intellectual property rights, in or outside India by applying on the web portal of the Authority in Form 7, for any invention based on research or information including digital sequence information on biological resource which is accessed from India, including those deposited in repositories outside India, or traditional knowledge associated thereto, shall seek prior approval of the Authority, before grant of intellectual property rights, by the competent authority in India or elsewhere;

(b) every application under clause (a) shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund;

(c) the Authority shall, after collecting such additional information from the applicant and other sources as deemed appropriate, and on being satisfied with the merits of the application, take a decision on granting approval or otherwise within a period of one hundred and eighty days from the date of receipt of application or on receipt of requisite information whichever is later**,** subject to such terms and conditions including benefit sharing, as it may deem fit:

Provided that the application shall be closed if the requisite information sought by the Authority has not been made available by the applicant within a period of ninety days from the date of seeking information and the applicant shall be informed about such closure.

(d) the approval shall be granted in the form of an agreement on mutually agreed terms duly signed by an authorised officer of the Authority and the applicant:

Provided that the application shall be deemed to be closed, if the applicant does not sign the agreement within a period of ninety days from the date of communication of the draft agreement by the Authority, upon intimation to the applicant:

Provided further that such closed application may be revived on receipt of payment of the half of the fee prescribed for submitting fresh application under clause (b) of sub–rule 1 within a period of ninety days.

(e) the applicant shall intimate the Authority within forty five days from the date of the grant of the intellectual property rights, failing which action as deemed fit will be taken by the competent authority;

(f) the Authority, for reasons to be recorded in writing, may reject an application if it considers that the request cannot be acceded to:

Provided that the application shall not be rejected unless the applicant has been given a reasonable opportunity of being heard.

(2) Procedure for registration before obtaining intellectual property rights by any person referred to under section 7 of the Act shall be as follows, namely:-

(a) any person referred to in under section 7 of the Act, applying for any intellectual property rights, in or outside India, shall register on the web portal of the Authority in Form 8, for any invention based on research or information including digital sequence information on biological resource which is accessed from India, including those deposited in repositories outside India, or traditional knowledge associated thereto, before grant of such intellectual property rights by the competent authority in India or abroad;

(b) every application under clause (a) for registration with the Authority, shall be accompanied by a specified fee in the form of electronic transfer or digital payment to the National Biodiversity Fund;

(c) if the Authority is of the opinion that such an invention is the result of access to the knowledge held by a community or an individual or a group of individuals in an illegal manner, the Authority may recommend to the adjudicating officer to impose higher penalty with regard to damage and also value assessed or realised, as the case may be;

(d) the applicant shall intimate the Authority within forty five days of the grant of the intellectual property rights;

(e) the applicant at the time of registration shall give an undertaking that prior approval of the Authority will be taken before commercialisation of the intellectual property rights.

(3) Procedure for obtaining prior approval of the Authority for commercialisation of the intellectual property rights by any person referred to in under section 7 of the Act shall be as follows:

(a) at the time of commercialisation of the intellectual property rights referred to under clause (e) of sub-rule(2), the applicant shall obtain prior approval by applying on the web portal of the Authority in Form 9.

(b) every application under clause (a) shall be accompanied by a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund;

(c) the Authority shall, after collecting such additional information from the applicant and other sources as deemed appropriate, and on being satisfied with the merits of the application, take a decision on granting approval or otherwise within a period of one hundred and eighty days days from the date of receipt of application or on receipt of requisite information whichever is later, subject to such terms and conditions including benefit sharing, as it may deem fit;

(d) the approval shall be granted in the form of an agreement on mutually agreed terms duly signed by an authorised officer of the Authority and the applicant:

Provided that the application is deemed to be closed if the applicant does not sign the agreement within a period of ninety days from the date of communication of the draft agreement by the Authority to the applicant:

Provided further that such closed application may be revived on receipt of payment of the half of the fee specified for fresh application under clause 3(b) within a period of ninety days.

17. Revocation of access or approval.- (1) The Authority may either on the basis of a complaint or suo moto withdraw the approvals granted under rules 13, 15, sub-rule(1) and (3) of rule 16 and rule 20 revoke the agreement or any part thereof, after giving a reasonable opportunity of being heard to the applicant, under the following conditions, namely: -

(i) on the basis of reasonable belief that the person to whom the approval was granted has declared false or misleading information or violated any of the provisions of the Act or the conditions on which the approval was granted;

(ii) when the person who has been granted approval has failed to comply with any of the terms and conditions of the agreement;

(iii) in the larger public interest or for the protection of environment and conservation of biological diversity, or on the basis of new facts or information brought to the notice of the Authority.

(2) The Authority shall forward a copy of every order of revocation to the State Biodiversity Board and Union territory Biodiversity Council and the Biodiversity Management Committee concerned for prohibiting the access and also to assess the damage caused, if any, and to take steps to recover the damages.

18. Measures for monitoring and regulating the use in India of biological resource or associated traditional knowledge obtained from any foreign country.- (1) Any person who intends to use in India the biological resource or traditional knowledge associated thereto obtained from any foreign country for research or for commercial purpose or for obtaining intellectual property rights, shall submit a declaration in Form 10 on the web portal of the Authority, as per the provisions of the Section 36(A) of the Act.

(2) The Authority, as per the provisions of the Section 36(A) of the Act, after obtaining relevant information from the user of such biological resource or traditional knowledge associated thereto, shall notify the same on the Access and Benefit-Sharing Clearing-House of the Convention on Biological Diversity.

(3) Based on the request of the provider country, the Authority, as per the provisions of the Section 36(A) of the Act, shall take appropriate measures on such use.

19. Procedure for obtaining a certificate of origin for cultivated medicinal plants. – (1) Any person referred to in under section 7 of the Act, who intends to claim an exemption for accessing cultivated medicinal plants under sub-section (2) of section 7, shall submit self-declaration in physical or digital form to obtain a certificate of origin from the Biodiversity Management Committee concerned in Form 11.

(2) The self-declaration referred to in sub-rule (1) shall contain details including the name and address of the applicant and the cultivator, geographical location including survey number, extent of area under cultivation along with the details of the species being cultivated and parts thereof, and approximate quantity of the biological resources being accessed.

(3) The application shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the Local Biodiversity Fund.

(4) The Biodiversity Management Committee, based on the application submitted by the applicant including the cultivation and post-harvest details of the medicinal plants, and the entries made in the books maintained in Format 12, shall issue the certificate of origin of the cultivated medicinal plants referred to under sub-section (3) of section 7 of the Act and sub-rule (1) within a period of fifteen days:

Provided that if the certificate of origin is not issued within a period of fifteen days, the applicant shall approach the State Biodiversity Board concerned and the same may be disposed of within a period of seven days:

Provided further that in the case of any dispute between the applicant, Biodiversity Management Committee or State Biodiversity Board concerned, the same shall be referred to the Authority by the State Biodiversity Board concerned, and in such case, the decision of the Authority shall be final.

(5) For claiming exemption under sub-section (2) of section 7 of the Act, the onus of proof of source of origin of the medicinal plants shall lie on the end-user.

20. Procedure for conducting non-commercial research or research for emergency purposes outside India by Indian researcher or institution.- (1) Any Indian researcher or institution who intends to carry or send the biological resource outside India to undertake non-commercial research including carrying out urgent studies to address certain present or imminent emergencies like epidemics, shall apply on the web portal of the Authority in Form 13 :

Provided that in case the traditional knowledge associated thereto is also to be transferred or carried along with the biological resources, the approval of the Authority shall be taken by the concerned foreign institution under rule 13.

(2) Every application under sub-rule (1) shall be accompanied with a specified fee paid in the form of electronic transfer or digital payment to the National Biodiversity Fund.

(3) The Authority shall, on being satisfied with the application under sub-rule (1), grant its approval within a period of forty five days from the date of receipt of the application.

(4) On receipt of approval of the Authority under sub-rule (3), the applicant shall deposit voucher specimens in the designated national repositories, wherever required, before carrying or sending the biological resource outside India and a copy of proof of such deposits shall be endorsed to the Authority.

21. Management and utilisation of National Biodiversity Fund.- (1) The National Biodiversity Fund shall be operated by the Chairperson or by such other officer of the Authority as may be authorised in this regard.

(2) The National Biodiversity Fund shall have two separate accounts, one relating to clause (a) of sub-section 1 of section 27 and the other under clause (b) and (c) of sub-section (1) of the Act which shall be utilised for the activities referred from sub-section (2) of section 27, as decided by the Authority.

(3) All receipts including monetary benefits accrued shall be deposited in the National Biodiversity Fund.

(4) The benefit sharing that is to be earmarked for the Authority, State Biodiversity Boards or Union territory Biodiversity Council may range from minimum of ten percent to maximum of fifteen percent as the case may be and rest may be transferred to benefit claimers or for other uses when benefit claimers are not identified.

(5) The Authority may specify measures for monitoring the utilisation of the Fund.

22. Appeal for settlement of disputes under section 50 of the Act.– (1) If a dispute arises between the Authority and a State Biodiversity Board or Union territory Biodiversity Council or Boards and Councils in respect of implementation of any order or direction or on any policy decision, either of the aggrieved parties or the Authority or the Board or the Council, as the case may be, may prefer an appeal under section 50 of the Act in Form 14, to the Central Government.

(2) In case of a dispute between a State Biodiversity Board or Union territory Biodiversity Council and another Board or Council or among Boards or Councils, the Central Government, may refer the same to the Authority for resolution.

(3) The memorandum of appeal shall be accompanied by an authenticated copy of the order, direction or policy decision, as the case may be, by which the appellant is aggrieved and shall be submitted online, within thirty days from the date of the order, direction or policy decision**:**

Provided that if the Central Government is satisfied that there was a good and sufficient ground for the delay in preferring the appeal, it may, for reason to be recorded in writing, allow the appeal to be preferred after the expiry of the aforesaid period of thirty days.

(4) The notice for hearing the appeal shall be given on the web portal of the Authority in Form 15.

(5) Where a dispute is referred to the Authority under sub-rule (2)**,** the Authority shall be guided by the principles of natural justice and as far as practicable, and follow the same procedure which the Central Government is required to follow under this rule.

(6) The Central Government or the Authority, after hearing the appellant and other parties, and after taking into consideration other relevant facts, if any, shall dispose of the appeal, within a period of sixty days.

(7) In disposing of an appeal, the Central Government or the Authority may modify or cancel the impugned order, direction or policy decision, as the case may be.

23. Manner of inquiry by the Adjudicating Officer.- (1) No Adjudicating Officer shall inquire into a complaint of non-compliance or contravention of the provisions referred to in section 55 of the Act unless the complaint is filed by or on behalf of the authorised officer, along with all necessary documents, either on its own motion or on receipt of a representation.

(2) The complaint may be represented by a presenting officer who shall be a legal practitioner and shall appear and present the case before the Adjudicating Officer, on behalf of the authorised officers, within their respective jurisdiction.

(3) The presenting officer shall, before forwarding the matter under sub-rule(1) to the Adjudicating Officer, process the same exercising reasonable due diligence, and bring on record all relevant facts and circumstances that need to be taken into account for imposing penalty, and also to ascertain if it is a matter necessary for adjudication and the authorised officer shall provide all the relevant documents and facts related to the case, to the presenting officer.

(4) The adjudicating officer within thirty days of receipt of the complaint shall issue a notice to the person against whom non-compliance or contravention to the provisions of section 3 or section 4 or section 6 or section 7 of the Act is alleged under section 55A of the Act, along with the particulars of the matter against him clearly specifying the nature of non-compliance or contravention, and such person may either appear personally or through an authorised representative, on such date as specified, which shall not be less than fifteen days from the date of service thereon and shall not exceed thirty days, in such format as may be prescribed by the Central Government.

(5) On such date as specified in the notice, the person or his authorised representative may admit or deny the allegations levelled against him, before the Adjudicating Officer.

(6) If the person or his representative admits to the allegations, the Adjudicating Officer shall state in his order such admission and impose a penalty and send a copy of the order to the concerned presenting officer and the person against whom complaint was filed.

(7) In cases not covered under sub-rule (6), the adjudicating officer shall fix a date for inquiry and communicate the same to the concerned presenting officer, for presentation of the matter.

(8) On the date fixed, the adjudicating officer shall give an opportunity to the person to produce documents or evidence as he may consider relevant to the inquiry.

(9) If any person fails or refuses to appear before the adjudicating officer as required by sub-rule (8) without sufficient cause, the adjudicating officer may proceed with the inquiry in the absence of such person.

(10) The Adjudicating Officer may also refer to the findings of the authority or officer authorised under section 55B of the Act or utilize their services, wherever necessary.

(11) While holding such inquiry, the adjudicating officer shall have power to summon and enforce the attendance of any person acquainted with the facts and circumstances of the matter to give evidence or to produce any document which, in the opinion of the adjudicating officer, may be useful for or relevant to the subject matter of the inquiry.

(12) For the purposes of sub-rule(11), the Adjudicating Officer shall have the following powers of a Civil Court, as specified in the Civil Procedure Code, 1908, namely:-

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of documents or other electronic records; and

(c) receiving evidence on affidavits.

(13) On presentation of matter by the concerned presenting officer, defence given by the person and recording of such information as necessary, the adjudicating officer shall either dismiss the allegation or make such order as it deemed fit.

(14) All orders of the Adjudicating Officer shall be speaking orders, irrespective of whether penalty has been imposed by such order or not.

(15) The Adjudicating Officer shall complete the adjudication of every matter within ninety days from the date fixed under sub-rule (7), which is extendable upto a further period of ninety days if sufficient cause exists.

(16) If the subject-matter of a complaint received under this rule is already in question before the National Green Tribunal or any other Court of competent jurisdiction on the date of receipt of the matter, the proceedings under this rule shall not be initiated unless such latter case is finally disposed of and the Adjudicating Officer shall make an order of adjournment of the proceedings under this sub-rule.

(17) If the adjudicating officer is satisfied that the person concerned has failed to comply with the provisions of section 3 or section 4 or section 6 or section 7 of the Act, he shall impose a penalty as deemed fit in accordance with the provisions of section 55 of the Act.

(18) The Adjudicating Officer shall not pass an order for penalty if the Tribunal or Court has already passed an order to that effect in a proceedings referred to in under sub-rule (16).

(19) Any person or a benefit claimer who intends to make a complaint before any court about any offence under this Act shall give a notice of not less than thirty days in Form 16 about his intention to make a complaint to the Central Government or authority or officer authorised in that behalf, under section 61 of the Act, through online or registered post with acknowledgement due or speed post.

(20) Upon expiry of a period of thirty days from the recipient of notice and not being satisfied with the action taken by authority or Central Government, such person or the benefit claimer may file a written complaint before a court having jurisdiction to take cognizance of the offence under the Act.

Provided that the Central Government or any authority or officer authorised by that Government may under clause (a) of section 61 of the Act make a written complaint to court for taking cognizance of any offence under the Act.

24. Appeals from Order of Adjudicating Officer.- Any person aggrieved by the order of the Adjudicating Officer may prefer an appeal to the National Green Tribunal established under section 3 of the National Green Tribunal Act, 2010 (19 of 2010), under section 52A of the Act.

25. Factors to be considered while determining quantum of penalty.- (1) The Adjudicating Officer shall have due regard to the following factors for determining the quantum of penalty, namely: -

(a) the amount of disproportionate gain or unfair advantage, wherever quantifiable, made as a result of contravention of the provisions of the Act;

(b) the penalty for contravention of the provisions referred to in section 55 of the Act shall not be less than one lakh rupees and may extend to fifty lakh rupees;

(c) in case the damage caused, exceeds the amount of penalty under sub-rule (2) then the penalty shall be commensurate with the damage caused.

Explanation.- In this clause the expression damage, includes damage to the environment and value of the biological resource used and value of the products derived from it by violating the provisions of the Act;

(d) in case of a failure or continued contravention, an additional penalty not exceeding one crore rupees may be imposed over and above the penalty under sub-rule (2) or (3);

(e) any other things as may be considered by the Adjudicating Officer to be relevant for the conservation of biological diversity and protection of the environment.

(2) A penalty shall not be imposed without giving the person or entity concerned a reasonable opportunity of being heard in the matter.

(3) The penalty as imposed by the Adjudicating Officer under the Act shall be in addition to the liability to pay relief or compensation under section 55 of the Act and section 17 of the National Green Tribunal Act, 2010(19 of 2010).

26. Deposition of the penalty amount.– All amounts of penalties realised under these rules shall be deposited in the National Biodiversity Fund and all the amounts of penalties relating to offences under section 7 of the Act shall be deposited in the Biodiversity Fund of the State Biodiversity Board or the Union territory Biodiversity Council concerned, as the case may be.

THE FIRST SCHEDULE

Application Forms and Fees

Sl. no.	Purpose of the application	Application Fee
(1)	(2)	(3)
1.	Application for seeking prior approval of the National Biodiversity Authority for access to biological resources or knowledge associated thereto for **research or for bio-survey and bio-utilization** by persons covered under section 3(2) of the Act.	
	For Individual	₹ 10,000.00
	For entity	₹ 20,000.00
2.	Application for seeking prior approval of the National Biodiversity Authority for access to biological resources or knowledge associated thereto for **commercial utilization** by persons covered under section 3(2) of the Act	
	For Individual	₹ 10,000.00
	For entity	₹ 20,000.00
3.	Application for seeking prior approval of the National Biodiversity Authority for **sharing or transferring the results of research** to section 3(2) persons for commercial purposes or otherwise.	
	For Individual	₹ 5,000.00
	For entity	₹ 10,000.00
4.	Application for prior registration with the National Biodiversity Authority to **use the results of research for further research by the transferee** (section 3(2) person)	
	For Individual	₹ 2,000.00
	For entity	₹ 5,000.00
5.	Application for seeking prior approval of the National Biodiversity Authority to **use the results of research for commercial utilisation** by the transferee (section 3(2) person)	
	For Individual	₹ 10,000.00
	For entity	₹ 20,000.00
6.	Application for seeking prior approval **to use the results of research for obtaining intellectual property rights** by the transferee (section 3(2) person)	
	For Individual	₹ 5,000.00
	For entity	₹ 10,000.00
7.	Application for seeking prior approval of the National Biodiversity Authority before grant of intellectual property rights by persons covered under section 3 (2) of the Act	

	For Individual	₹ 5,000.00
	For entity	₹ 10,000.00
8.	Application for registration with the National Biodiversity Authority before grant of intellectual property rights by persons covered under section 7 of the Act.	
	For Individual	₹ 2,000.00
	For entity	₹5,000.00
9.	Application for seeking prior approval of the National Biodiversity Authority for commercialisation of intellectual property rights by persons covered under section 7 of the Act.	
	For Individual	₹ 5,000.00
	For entity	₹ 10,000.00
10.	Form for declaration of the use of biological resource or associated traditional knowledge obtained from any foreign country, in India.	Nil
11.	Application cum format for obtaining certificate of origin for cultivated medicinal plants	₹ 200.00
12.	Format of book containing details of cultivated medicinal plants to be maintained by the Biodiversity Management Committee	Nil
13.	Application for seeking prior approval of the National Biodiversity Authority for sending /carrying the biological resources outside India by Indian researchers / institutions for conducting non-commercial research or research for emergency purposes.	₹ 1,000.00
14.	Form of Memorandum of Appeal before the Central Government for settlement of disputes	Nil
15.	Format of notice to be issued by the Ministry of Environment, Forest and Climate Change or National Biodiversity Authority for appearance before it	Nil
16.	Format of notice by any person/benefit claimer	Nil

THE SECOND SECHEDULE
[see rule 2(1)(g)]

FORM -1

{See section 3 of the Act and rule 13(1)}

Application for seeking prior approval of the National Biodiversity Authority for access to biological resources or knowledge associated thereto for research or for bio-survey and bio-utilization by persons covered under section 3(2) of the Act.

(1)	**Particulars of the applicant**	
(i)	Category of the applicant	(Drop down menu) a. Individual b. Individual and Entity c. Entity
(ii)	Name of the applicant	
(iii)	Status of the applicant	(Drop down menu) a. NRI b. Non-Indian c. Entity covered under section 3(2) of the Act.
(iv)	Address of the applicant	

	(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)	
(v)	Profile of the individual/entity	
(vi)	Nature of the business (applicable if the applicant is an entity)	
(vii)	Details of the authorized representative for the applicant (applicable if the applicant is an entity) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(viii)	Contact person of the applicant in India (If any) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(2)	**Details of the biological resources and knowledge associated thereto intended to be accessed**	
(i)	**Details of the biological resource**	(Drop down menu) i. Nature of the biological resource(s) (*plants/animals/microbes/genetic material/variety/hybrid)* ii. Common name iii. Scientific name (Genus and species/ variety/strain) iv. Plant parts (Seed, stem, bark, leaf, flower, fruit, root, rhizome, genetic material, extract, exudate, etc.) v. Quantity of each biological resource (in Kg/gm/ml) vi. Duration of access (expected start and end date) vii. Frequency of access (number of times the biological resource(s) will be accessed) viii. Source of access (wild/cultivated/ institution/repository/traders/ market) ix. Geographical location (village, taluk, district, state). If procured from a trader/institute, their name, address and contact details to be provided; if procured from repository/institution, then origin of collection to be provided.
(ii)	**Details about the knowledge associated thereto:**	
(a)	Nature of the knowledge associated (Oral/ documented)	
(b)	Details of traditional knowledge intended to be accessed (in not more than 100 words)	
(c)	Name of the traditional knowledge holder (individual/community)	
(d)	Address of the traditional knowledge holder (individual community)	

(3)	**Expected duration of research**	
(4)	**The purpose for which access is required including the type and extent of research being derived and expected to be derived from it**	
(i)	Brief description about the research	
(ii)	Expected outcome of the research	
(5)	**Details of any institution which will participate in the research and development activities**	
(i)	Name of the person or institute	
(ii)	Contact details *(Postal address(es) including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(6)	**Preferred mode of benefit sharing**	i. Monetary ii. Non-monetary iii. Both
(7)	**Estimation of benefits that would flow to India/communities arising out of the use of accessed biological resources and knowledge associated thereto**	
(8)	**Any other information considered relevant**	
(9)	**Details of remittance of application fee** *(mode of payment, transaction ID, amount, date, etc.)*	

Declaration

I/We declare that:

1. Collection of the proposed biological resources shall not adversely affect the sustainability of the resources;
2. Collection of the proposed biological resource shall not entail any environmental impact;
3. Collection of the proposed biological resource shall not pose any risk to the ecosystems; and
4. Collection of the proposed biological resource and knowledge associated thereto shall not adversely affect the local communities.

I/We further declare that the information provided in the application form is true and correct to the best of my/our knowledge and belief and that it conceals nothing and that no part of it is false. I/We shall be responsible for any incorrect or wrong information provided.

Place Signature

Date Name

FORM-2

{See section 3 of the Act and rule 13(1)}

Application for seeking prior approval of the National Biodiversity Authority for access to biological resources or knowledge associated thereto for commercial utilization by persons covered under section 3(2) of the Act

(1)	**Particulars of the applicant**	
(i)	Category of the applicant	(Drop-down menu) a. Individual b. Individual and Entity c. Entity
(ii)	Name of the applicant	
(iii)	Status of the applicant	(Drop down menu) a. NRI b. Non-Indian c. Entity covered under section 3(2) of the Act
(iv)	Address of the applicant *(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(v)	Profile of the individual/entity	
(vi)	Nature of the business (applicable if the applicant is an entity)	
(vii)	Details of the authorised representative for the applicant *(applicable if the applicant is an entity)* *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(viii)	Contact person of the applicant in India (If any) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(2)	**Details of the biological resources and knowledge associated thereto intended to be accessed**	
(i)	Details of biological resource	(Drop down menu) i. Nature of the biological resource (*plants/animals/microbes/genetic material/variety/hybrid)* ii. Common name iii. Scientific name (Genus and species/ variety/strain) iv. Plant parts (Seed, stem, bark, leaf, flower, fruit, root, rhizome, genetic material, extract, exudate, etc.) v. Quantity of each biological resource (in Kg/gm/ml) vi. Duration of access (expected start and end date) vii. Source of access (wild/cultivated/ institution/repository/trader/ market)

		viii. Geographical location (village, taluk, district, state). If procured from a trader institute, their name, address and contact details to be provided; if procured from repository/institution, then origin of collection to be provided.
(ii)	**Details about the knowledge associated thereto:**	
(a)	Nature of the knowledge associated *(Oral/ documented)*	
(b)	Details of traditional knowledge intended to be accessed *(in not more than 100 words)*	
(c)	Name of the traditional knowledge holder (individual community)	
(d)	Address of the traditional knowledge holder (individual community)	
(3)	**The purpose for which access is required including the type and extent of commercial utilisation being derived and expected to be derived from it**	
(i)	Brief description about the commercial utilization	
(ii)	Expected duration of commercial utilization	
(4)	**Details of the approval obtained from the Authority for the purpose of research or for bio-survey and bio-utilization**	
(i)	NBA application number	
(ii)	Date of approval	
(iii)	Upload copy of the approval granted (in the form of agreement) by the National Biodiversity Authority	
(5)	**Preferred mode of benefit sharing**	i. Monetary ii. Non-monetary iii. Both
(6)	**Estimation of benefits that would flow to India/ communities arising out of the use of accessed biological resources and knowledge associated thereto**	
(7)	**Any other information considered relevant**	
(8)	**Details of remittance of application fee** *(Mode of payment, transaction ID, amount, date, etc.)*	

Declaration

I/We declare that:

1. Collection of the proposed biological resource shall not adversely affect the sustainability of the resources;
2. Collection of the proposed biological resource shall not entail any environmental impact;
3. Collection of the proposed biological resource shall not pose any risk to the ecosystems; and
4. Collection of the proposed biological resource and knowledge associated thereto shall not adversely affect the local communities.

I/We further declare that the information provided in the application form is true and correct to the best of my/our knowledge and belief and that it conceals nothing and that no part of it is false. I/We shall be responsible for any incorrect or wrong information provided.

Place Signature

Date Name

FORM-3

{See section 4 of the Act and rule 15(1)(a)}

Application for seeking prior approval of the National Biodiversity Authority for sharing or transferring the results of research to section 3(2) persons for commercial purposes or otherwise

(1)	**Particulars of the applicant**	
(i)	Category of the applicant	(Drop-down menu) a. Individual b. Individual and Entity c. Entity
(ii)	Name of the applicant	
(iii)	Status of the applicant	(Drop down menu) a. Indian b. NRI c. Non-Indian d. Entity covered under section 3(2) of the Act e. Entity covered under section 7 of the Act
(iv)	Address of the applicant *(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(v)	Profile of the individual/entity	
(vi)	Nature of the business (applicable if the applicant is an entity)	
(vii)	Details of the authorised representative for the applicant *(applicable if the applicant is an entity)* *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(viii)	Contact person of the applicant in India (If any) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(2)	**Details of the results of research**	
(i)	Details of the results of research conducted	
(ii)	Details and nature of results of research to be transferred or shared	
(3)	**Details of the biological resources used in the research**	(Drop down menu) i. Nature of the biological resource(s) (*plants/animals/microbes/genetic material/variety/hybrid)* ii. Common name

		iii. Scientific name (Genus and species/ variety/strain) iv. Plant parts (Seed, stem, bark, leaf, flower, fruit, root, rhizome, genetic material, extract, exudate, etc.) v. Source of access (wild/cultivated/institution/repository/traders/ market) vi. Geographical location (village, taluk, district, state). If procured from a trader institute, their name, address and contact details to be provided; if procured from repository/ institution, then origin of collection to be provided.
(4)	**Details of the traditional knowledge associated thereto if any used in the research**	
(i)	Details of traditional knowledge accessed (in not more than 100 words)	
(ii)	Name of the traditional knowledge holder (individual community)	
(iii)	Address of the traditional knowledge holder (individual/ community)	
(iv)	Consent obtained from the community/individual, if any	
(5)	**Details of the approval obtained from the Authority for undertaking research by section 3(2) persons**	
(i)	NBA application number	
(ii)	Date of approval	
(iii)	Upload copy of the approval granted (in the form of agreement) by the National Biodiversity Authority	
(6)	**Details of the institution where research and development activities were carried out**	
(i)	Provide the name and contact details of the institution/entity where research and development activities were carried out	
(ii)	Name of the institution	
(iii)	Contact details *(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(iv)	*Attach a copy of the letter issued to the applicant by the competent authority of the institution/ entity where research and development activities were carried out.*	
(7)	**Details of the individual/entity to whom the research results are intended to be transferred or shared.**	
(i)	Name(s) and contact details of individual entity	

(ii)	Details of the intended use of research results by the transferee	
(8)	**Details of economic, scientific or any other benefits that are intended, or may accrue to the applicant seeking approval for share or transfer of results of research.**	
(9)	**Details of any memorandum of understanding or agreement executed between the proposed recipient and the applicant seeking approval for share or transfer of results of research** (Copy of Memorandum of Understanding /agreement, if any, to be uploaded.)	
(10)	**Any other information considered relevant**	
(11)	**Details of remittance of application fee** *(Mode of payment, transaction ID, amount, date, etc.)*	

Declaration

I/We declare that:

a. I/We inform the transferee to register with the Authority if he/she intends to use the results of research for further research as per the extant provisions of the Act.

b. I/We inform the transferee to seek prior approval of the Authority if he/she intends to use the results of research for commercial utilization or for obtaining intellectual property rights as per the extant provisions of the Act.

c. The information provided in the application is true and correct to the best of my/our knowledge and belief that it conceals nothing and that no part of it is false. I/We shall be responsible for any incorrect or wrong information provided.

Place Signature

Date Name

FORM-4

{See section 4 of the Act and rule 15(1)(b)}

Application for registration with the National Biodiversity Authority to use the results of research for further research by the transferee

(1)	**Particulars of the applicant (transferee)**	
(i)	Category of the applicant	(Drop down menu) a. Individual b. Individual and Entity c. Entity
(ii)	Name of the applicant	
(iii)	Status of the applicant	(Drop down menu) a. NRI b. Non-Indian c. Entity covered under section 3(2) of the Act

(iv)	Address of the applicant *(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(v)	Profile of the individual/entity	
(vi)	Nature of the business (applicable if the applicant is an entity)	
(vii)	Turnover of the organization in Indian rupees (applicable if the applicant is an entity)	
(viii)	Details of the authorised representative for the applicant (applicable if the applicant is an entity) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(ix)	Contact person of the applicant in India (If any) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(2)	**Details of the approval obtained from the Authority by the transferor or person from whom results of research are obtained under sections 4 and 20 of the Act**	
(i)	Name of the person/entity/institution	
(ii)	Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number	
(iii)	NBA Application number	
(iv)	Date of approval	
(v)	Upload copy of the approval granted (in the form of agreement) by the National Biodiversity Authority	
(3)	**Brief description about the research activities to be carried out by the applicant**	
(4)	**Details of any person institute that are to be involved in the research**	
(i)	Name of the person or institute	
(ii)	Contact details (Postal address including PIN code, email, mobile and alternate mobile numbers and landline number)	
(5)	**Expected duration of research**	
(6)	**Expected outcome of research**	
(7)	**Benefits that would flow to India/ communities arising out of the proposed research on the use of obtained results of research**	
(8)	**Any other information considered relevant**	
(9)	**Details of remittance of application fee** (Mode of payment, transaction ID, amount, date, etc.)	

Declaration

a. I/We further declare that the information provided in the application form is true and correct to the best of my/our knowledge and belief and that it conceals nothing and that no part of it is false.
b. I/We shall be responsible for any incorrect or wrong information provided.
c. I/We shall declare the progress made in the research activities to the Authority at the end of every calendar year.
d. I/We shall obtain prior approval of the Authority at the time of commercial utilization of the obtained results of research or for obtaining intellectual property rights within or outside India as per section 4 and 6 of the Act respectively.

Place Signature.
Date Name

FORM-5

{See section 4 of the Act and rule 15(1)(c)}

Application for seeking prior approval of the National Biodiversity Authority to use the results of research for commercial utilisation by the transferee.

(1)	**Particulars of applicant (Transferee)**	
(i)	Category of the applicant	(Drop down menu) a. Individual b. Individual and Entity c. Entity
(ii)	Name of the applicant	
(iii)	Status of the applicant	(Drop down menu) a. NRI b. Non-Indian c. Entity covered under section 3(2) of the Act
(iv)	Address of the applicant (Postal address including PIN code, email, mobile, alternate mobile number and/or landline number)	
(v)	Profile of the individual/entity	
(vi)	Nature of the business (applicable if the applicant is an entity)	
(vii)	Turnover of the organization in Indian rupees (applicable if the applicant is an entity)	
(viii)	Authorized representative (applicable if the applicant is an entity) (Postal address including PIN code, email, mobile, alternate mobile number and/or landline number)	
(ix)	Contact person in India (If any) (Postal address including PIN code, email, mobile, alternate mobile number and/or landline number)	
(2)	**Details of the approval obtained from the Authority by the transferor or person from whom results of research are obtained under section 4 and 20 of the Act**	
(i)	Name of the person/entity/institution	
(ii)	Postal address including PIN code	
(iii)	E-mail ID, mobile, alternate mobile number and/or landline number	
(iv)	NBA Application number	
(v)	Date of approval	
(vi)	Upload copy of the approval granted (in the form of agreement) by the National Biodiversity Authority	
(3)	**Brief description about the commercial activity to be carried out by the applicant**	
(4)	**Expected duration of the commercial utilization**	
(5)	**Expected outcome and benefits that would flow to India/ communities arising out of the commercial utilisation of the obtained results of research**	
(6)	**Any other information considered relevant**	
(7)	**Details of remittance of application fee** *(Mode of payment, transaction ID, amount, date, etc.)*	

Declaration

a. I/We further declare that the information provided in the application form is true and correct to the best of my/our knowledge and belief and that it conceals nothing and that no part of it is false.

b. I/We shall be responsible for any incorrect or wrong information provided.

Place Signature.

Date Name

FORM-6

{See section 4 of the Act and rule 15(1)(d)}

Application for seeking prior approval of the National Biodiversity Authority to use the results of research for obtaining intellectual property rights by the transferee.

(1)	**Particulars of applicant (Transferee)**	
(i)	Category of the applicant	(Drop down menu) a. Individual b. Individual and Entity c. Entity
(ii)	Name of the applicant	
(iii)	Status of the applicant	(Drop down menu) a. NRI b. Non-Indian c. Entity covered under section 3(2) of the Act
(iv)	Address of the applicant (Postal address including PIN code, email, mobile, alternate mobile number and/or landline number)	
(v)	Profile of the individual/entity	
(vi)	Nature of business (applicable if the applicant is an entity)	
(vii)	Turnover of the organization in Indian rupees (applicable if the applicant is an entity)	
(viii)	Authorized representative (applicable if the applicant is an entity) (Postal address including PIN code, email, mobile, alternate mobile number and/or landline number)	
(ix)	Details of the patent attorney/contact person (Postal address including PIN code, e-mail, mobile, alternate mobile and/or landline number)	
(2)	**Details of the transferor from whom the results of the research are obtained**	
(i)	Name of the person/entity/institution	
(ii)	Postal address including PIN code	
(iii)	E-mail ID, mobile, alternate mobile number and/or landline number	
(3)	**Details of the approval obtained from the National Biodiversity Authority by the transferor or person from whom results of research are obtained under section 4 of the Act**	
(i)	NBA Application number	
(ii)	Date of approval	
(iii)	Upload copy of the approval granted (in the form of agreement) by the National Biodiversity Authority	
(4)	**Details of the invention**	
(i)	Title of invention	
(ii)	Abstract/details of the invention	
(iii)	Details of the patent office where the applicant intends to file patent application for the said invention	
(iv)	Whether any intellectual property rights application has been filed in or outside India for the present invention as on date	
(5)	**Details of remittance of application fee**	

	(Mode of payment, transaction ID, amount, date, etc.)	
(6)	**Any other information considered relevant**	

Declaration

a. I/We further declare that the information provided in the application form is true and correct to the best of my/our knowledge and belief and that it conceals nothing and that no part of it is false.

b. I/We shall be responsible for any incorrect or wrong information provided.

Place Signature.
Date Name

FORM-7

{See section 6(1) of the Act and rule 16(1)(a)}

Application for seeking prior approval of the National Biodiversity Authority before grant of intellectual property rights by persons covered under section 3 (2) of the Act.

(1)	**Particulars of the applicant**	
(i)	Category of the applicant	(Drop-down menu) a. Individual b. Individual and Entity c. Entity
(ii)	Name of the applicant (as in the patent application)	
(iii)	Status of the applicant	(Drop down menu) a. NRI b. Non-Indian c. Entity covered under section 3(2) of the Act
(iv)	Address of the applicant *(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(v)	Profile of the individual/entity	
(vi)	Nature of the business (applicable if the applicant is an entity)	
(vii)	Details of the authorised representative for the applicant (applicable if the applicant is an entity) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(viii)	Details of the patent attorney/contact person (if applicable) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	

<table>
<tr><td>(2)</td><td colspan="2">Details of the approval obtained from the National Biodiversity Authority for research under section 3 of the Act</td></tr>
<tr><td>(i)</td><td>NBA application number</td><td></td></tr>
<tr><td>(ii)</td><td>Date of approval</td><td></td></tr>
<tr><td>(iii)</td><td>Upload copy of the approval granted (in the form of agreement) by the National Biodiversity Authority</td><td></td></tr>
<tr><td>(3)</td><td>Details of any other organization involved in the research and development activities</td><td></td></tr>
<tr><td>(4)</td><td colspan="2">Details of the invention</td></tr>
<tr><td>(i)</td><td>Title of the Invention</td><td></td></tr>
<tr><td>(ii)</td><td>Field of Invention</td><td>Drop down
(Agro-chemical, biotechnology, chemical, food, pharmaceutical, textile, bio-chemistry, polymer technology, microbiology, bio-medical engineering, agriculture engineering, traditional knowledge biotechnology, traditional knowledge chemical or any other relevant field)</td></tr>
<tr><td>(iii)</td><td>Abstract/details of the invention (in not more than one hundred and fifty words)</td><td></td></tr>
<tr><td>(iii)</td><td>Details of the patent office where the applicant intends to file patent application for the said invention</td><td>[Names of the countries to be placed in the drop down menu]</td></tr>
<tr><td>(iv)</td><td>Whether any patent application has been filed in or outside India for the present invention as on date</td><td>Yes/ No</td></tr>
<tr><td>(vi)</td><td colspan="2">If answer to (v) is ‘Yes’, details to be provided:
<table>
<tr><td>Sl No</td><td>Name of the country [Drop down menu]</td><td>Patent office in which application has been filed [Drop down menu]</td><td>Date of filing of the patent application</td><td>Patent application number</td><td>Status of the application as on date (Filed/published/ under examination /under hearing/ granted) [Drop down menu]</td><td>If granted, patent number and date of grant</td></tr>
<tr><td></td><td></td><td></td><td></td><td></td><td></td><td></td></tr>
</table></td></tr>
<tr><td>(5)</td><td>Details of the biological resource accessed/ claimed in the invention</td><td>a. Nature of the accessed biological resource(s) (Plant/animal/ microorganism/ fungi/algae and others) [Drop down]
b. Common name
c. Scientific name (Genus and species/ variety/strain)</td></tr>
</table>

		d. Plant parts (whole plant, seed, stem, bark, leaf, flower, fruit, root, rhizome, etc.) [drop down] e. Source of access (Market/trader/ wild/self-cultivated/repository/others to be specified) [drop down] f. Geographical location (village, taluk, district, state). If procured from trader/institute, entity's names, addresses and contact details to be provided. If procured from repository/ institution, then origin of collection is to be provided.
(6)	**Details of any traditional knowledge associated thereto accessed**	
(i)	Details of traditional knowledge associated thereto accessed *(in not more than one hundred words)*	
(ii)	Name of the holder(s) of the traditional knowledge associated thereto *(individual / community)*	
(iii)	Address of the traditional knowledge holder *individual/community)*	
(iv)	Traditional knowledge associated thereto obtained from any other source	
(6)	**Any other information considered relevant**	
(7)	**Details of remittance of application fee** *(Mode of payment, transaction ID, amount, date, etc.)*	

Declaration

I/We declare that:

a. The information provided in the application form is true and correct to the best of my/our knowledge and belief and that it conceals nothing and that no part of it is false.

b. I/We shall be responsible for any incorrect or wrong information provided.

c. Prior approval of the National Biodiversity Authority is mandatory under rule 16 for access to biological resources and knowledge associated thereto while commercializing the patent granted.

Place Signature

Date Name

Form-8

{See section 6(1A) of the Act and rule 16 (2)(a)}

Application for registration with the National Biodiversity Authority before grant of intellectual property rights by persons covered under section 7 of the Act

(1)	**Particulars of the applicant**	
(i)	Category of the applicant	(Drop down menu) Individual Individual and Entity Entity
(ii)	Name of the applicant (as in patent application)	
(iii)	Status of the applicant	(Drop down menu) Indian Entity covered under section 7 of the Act
(iv)	Address of the applicant *(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(v)	Profile of the individual/entity	
(vi)	Nature of the business (*applicable if the applicant is an entity*)	
(vii)	Details of the authorised representative for the applicant (applicable if the applicant is an entity) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(viii)	Details of the patent attorney/contact person (*if applicable*) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and landline number)*	
(2)	**Details of the invention**	
(i)	Title of the invention	
(ii)	Field of invention	Drop down *(Agro-chemical, biotechnology, chemical, food, pharmaceutical, textile, biochemistry, polymer technology, microbiology, biomedical engineering, agriculture engineering, traditional knowledge biotechnology, traditional knowledge chemical or any other relevant field)*
(iii)	Abstract/details of the invention (not more than one hundred and fifty words)	
(iv)	Details of the patent office where the applicant intends to file patent application for the said invention	[*Names of the countries to be placed in the drop down menu*]
(v)	Whether any patent application has been filed in or outside India for the present invention as on date	
(vi)	If answer to (v) is 'Yes', details to be provided:	

	Sl. No.	Name of the country *[Drop down menu]*	Patent office in which application has been filed *[Drop down menu]*	Date of filing of the patent application	Patent application number		

(3)	**Details of the biological resource accessed/claimed in the invention**	Nature of the accessed biological resource(s) (Plant/animal/ microorganism/fungi/algae/others) *[Drop down]* Common name Scientific name (Genus and species/variety/strain) Plant parts (whole plant, seed, stem, bark, leaf, flower, fruit, root, rhizome, etc.) Source of access (Market/trader/ wild/ self-cultivated/repository/ others) Geographical location (village, taluk, district, state). If procured from trader/institute, entity's name, address, and contact details to be provided. If procured from repository/institution, then origin of collection is to be provided.
(4)	**Details of traditional knowledge accessed, if any**	
(i)	Details of traditional knowledge accessed (in not more than 100 words)	
(ii)	Name of the traditional knowledge holder, (individual community)	
(iii)	Address of the traditional knowledge holder (individual/community)	
(iv)	Traditional knowledge associated thereto obtained from any other source	
(5)	**Details of any organization involved in the research and development activities**	
(6)	**Any other information considered relevant**	
(7)	**Details of remittance of application fee** (mode of payment, transaction ID, amount, date, etc.)	

Declaration

I/We declare that:

The information provided in the application form is true and correct to the best of my/our knowledge and belief and that it conceals nothing and that no part of it is false.

I/We shall be responsible for any incorrect or wrong information provided.

I/We shall obtain prior approval of the Authority at the time of commercialization of the patent as per section 6(1B) of the Act and rule 16(3)(a) of the Rules.

Place Signature

Date Name

FORM-9

{See section 6(1B) of the Act and rule 16(3)(a)}

Application for seeking prior approval of the National Biodiversity Authority (post registration) for commercialisation of intellectual property rights by persons covered under section 7 of the Act

(1)	**Particulars of the applicant**	
(i)	Category of the applicant	(Drop down menu) a. Individual b. Individual and Entity c. Entity
(ii)	Name of the applicant (as in patent application)	
(iii)	Status of the applicant	(Drop down menu) a. Indian b. Entity covered under section 7 of the Act
(iv)	Address of the applicant *(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(v)	Profile of the individual/entity	
(vi)	Nature of business (applicable if the applicant is an entity)	
(vii)	Details of the authorised representative for the applicant (applicable if the applicant is an entity) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(viii)	Details of the patent attorney/contact person (if applicable) *(Name with postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(2)	**Details of the registration made with the National Biodiversity Authority before grant of intellectual property rights**	
(i)	NBA registration number	
(ii)	Title of the invention	
(iii)	Details of the patent office/countries in which patents have been granted as on date (*Copy of patent certificate issued by the patent office to be uploaded*)	*[List of countries to be in Drop down]*
(iv)	Upload copy of the latest Form-27 submitted with the Indian patent office, if any	
(v)	Whether details of biological resources furnished in the registration and list of biological resources furnished in this application is one and the same or different?	Yes / No.
		If no, furnish the details of biological resources given below: a. Nature of the accessed biological resource(s) (Plant/animal/ microorganism/fungi/algae/others) *[Drop down]* b. Common name c. Scientific name (Genus and species/variety/strain)

		d. Plant parts (whole plant, seed, stem, bark, leaf, flower, fruit, root, rhizome, etc.) e. Source of access (Market/trader/ wild/ self-cultivated/repository/ others) f. Geographical location (village, taluk, district, state). If procured from trader/institute, entity's name, address, and contact details to be provided. If procured from repository/institution, then origin of collection is to be provided.
(3)	**Details of commercialisation**	
(i)	Details of each country where the invention is sought to be commercialized	i. Name of the country (Drop-down) ii. Patent number iii. Mode of commercialization (Licensing/assignment/self-manufacture/transfer of particular patent rights alone/any other mode) iv. Details of each licensee/assignee/ transferee/ any other person *(Names with Postal addresses including PIN code, email, mobile and alternate mobile numbers and/or landline number*) v. Period of commercialization *(in years)* vi. Amount of revenue generated, if any / likely to be generated
(4)	**Any other information considered relevant**	
(5)	**Details of remittance of application fee** (Mode of payment, transaction ID, amount, date, etc.)	

Declaration

I/We declare that:

The information provided in the application form is true and correct to the best of my/our knowledge and belief and that it conceals nothing and that no part of it is false.

a. I/We shall be responsible for any incorrect or wrong information provided.
b. Prior intimation to the concerned State Biodiversity Board or Union territory Biodiversity Council shall be provided for accessing the biological resource and/or traditional knowledge associated thereto for commercial utilization as per section 7 of the Act.

Place: Signature:
Date: Name:

FORM-10

{See section 36A of the Act and rule 18(1)}

Form for declaration of the use of biological resource(s) and/or associated traditional knowledge obtained from any foreign country, in India

Sl .no	Particulars	
(1)	**Name of the person or entity**	
(2)	**Category of the applicant**	Individual Individual and Entity Entity
(3)	**Status of the applicant**	(Drop down menu) Indian NRI

		Non-Indian Entity covered under section 3(2) of the Act Entity covered under section 7 of the Act
(4)	**Complete address** ***Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)***	
(5)	**Details of biological resource used**	
(i)	Scientific and common name of the biological resource	
(ii)	Country from where biological resource was/were accessed	
(iii)	Whether the country from which the biological resource were accessed is a Party to Nagoya Protocol	Yes/No (Please tick whichever is applicable)
(6)	**Whether approval of the Competent National Authority of the country of origin of biological resource has been obtained**	Yes/No [drop down- list of country]
(i)	Details of the ABS-CH Unique Identifier of internationally recognized certificate of compliance *(if available).*	
(ii)	If the internationally recognized certificate of compliance is not available, the following information may be provided	
	(a) Source of the biological resource	
	(b) Purpose of the utilization of the biological resource	Research Commercial utilization Obtaining intellectual property rights Others
(iii)	Details of patent applications filed, if any	

Declaration

I/we hereby declare that I/we have complied with the provisions of prior informed consent and mutually agreed terms of the country from where the biological resources have been obtained.
I/ we hereby declare and solemnly affirm that the information provided above is true and correct to the best of my knowledge.

Place:
Date: **Signature of the Applicant**

FORM–11

{See section 7 of the Act and rule 19(1)}

Application cum format for obtaining certificate origin for cultivated medicinal plants

(*to be issued by the Biodiversity Management Committee***)**

Unique Identity Number

(Alpha numeric to be assigned by the BMC)

CODE: State/District/ Mandal/ Taluk/ Town/ Village/ BMC/ Year/ Company Name / numerical Number

Sl.no	**Particulars**	**:**	**To be filled by the applicant**
(1)	**Name of the Biodiversity Management Committee**	:	…… (Village or Town / District / State / Union Territory)
(2)	**Name of the applicant**	:	
(3)	**Complete Address** ***(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)***	:	
(4)	**Name of the species and varieties to be accessed**	:	Common name Scientific name (Genus and species/variety/strain, (if known)

			Parts
(5)	**Name of the cultivator / farmer**	:	
(6)	**Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number**	:	
(7)	**Geo-coordinates of the cultivated area**	:	(If known)
(8)	**Survey number of the land**	:	
(9)	**Extent of area under cultivation of the medicinal plants (in acres)**	:	
(10)	**Approximate quantity of cultivated medicinal plants for which certificates is required**	:	(in *kg /quintal / tonne/bale*) -dry weight or -wet weight
(11)	**Purpose of access**	:	
(12)	**Period of access**	:	{from …….(Month) to…….(Month)}
(13)	**Price of the medicinal plants (*per- kg /quintal / tonne/bale*)**	:	

I/we hereby declare and solemnly affirm that the information provided above is true and correct to the best of my knowledge.

Place Signature

Date Name

CERTIFICATE

This is to certify that the request made by a company/trader/individual/entity has been carefully examined and the medicinal plants have been physically verified in the field. The information given in the application form has been verified from the concerned books [page no… sl.no…. date….] maintained by the Biodiversity Management Committee.

It is certified that the above mentioned medicinal plants are from the cultivated source and meet the criteria prescribed under section 7 of the Biological Diversity (Amendment) Act, 2023 read with rule 19 of the Rules.

This certificate is valid **up to two years** from the date of issue.

Date: **(Name)**

Place: **Signature of the authorized person of the BMC**

Seal

FORM-12

{See section 7of the Act and rule 19(4)}

Format of book containing details of cultivated medicinal plants to be maintained by the Biodiversity Management Committee

……**Biodiversity Management Committee**,..... **Panchayat/ Urban Local Body**

(Specify whether area is covered under The Panchayats Extension to Scheduled Areas (PESA) Act, 1996, wherever applicable)

Sl. No.	Full details of farmers/ individuals/ entities including postal address mobile, e-mail, etc.	Geographical location of the area where cultivation is being done including name of area extent, geo co-ordinates, period of cultivation, etc.	Details of cultivated medicinal plants including common and botanical names, period of cultivation, average yield per hectare.	Approx., volume/ Quantity available before issue of certificate [1.wet weight or 2. dry weight]
1	2	3	4	5

Quantity/volume for which present certificate is being issued. [1.wet weight or 2. dry weight]	Quantity/volume remaining after issue of the present certificate *(including the extent of area remains to be harvested)*	Details of the receiver including complete contact details, purpose of collection	Unique identity number of certificate issued with date	Signed by the Secretary or Chief Executive Officer of the Biodiversity Management Committee and countersigned by the chairperson/ president of urban local body or member of the Biodiversity Management Committee
6	7	8	9	10

FORM-13

{See rule 20(1)}

Application for seeking prior approval of the National Biodiversity Authority for sending or carrying the biological resources outside India by Indian researchers or institutions for conducting non-commercial research or research for emergency purposes

(1)	**Particulars of applicant**	
(i)	Category of the applicant	*(Drop down menu)* Individual researcher Institution
(ii)	Name of the applicant and designation	
(iii)	Address of the applicant *(Postal address including PIN code, email, mobile and alternate mobile numbers and/or landline number)*	
(iv)	Name of the institution	
(2)	**Details of the institution in India**	
(i)	Name of the institution	
(ii)	Address of the institution *(Postal address including PIN code, email, mobile and alternate mobile numbers and landline number)*	
(3)	**Name of the supervisor or head of institution at the place of work, in India**	
(i)	Name of the supervisor or head of institution with complete address	
(ii)	Designation of the supervisor or head of institution	
(4)	**Details of the supervisor or head of the institution or organisation who guides the proposed research or recipient of the biological resources outside India**	
(i)	Category (individual or institution/organization or person receiving the biological resources)	

(ii)	Name of the supervisor or head of the institution or recipient outside India	
(iii)	Complete address for communication	
(5)	**Name and details of the funding agency supporting the research, if any**	
(6)	**Details of research that are proposed to be carried out**	
(i)	Brief description of the research	
(ii)	Role and involvement of foreign researcher/institution in the research, if any	
(iii)	Benefits that would accrue to India and to the researcher through this research	
(7)	**Details of biological resources proposed to be carried along or sent for the research**	
(i)	a. Common name b. Scientific name c. Nature of biological resource d. Plant parts *(seed, stem, bark, leaf, flower, fruit, root, rhizome, genetic material, extract, exudate, etc.)* e. Quantity *(in number/vial/kg)* f. Geographical location (village, taluk, district, state). If procured from trader/institute, trader name, address and contact details to be provided. If procured from repository/ institution, then origin of collection is to be provided.	
(ii)	Expected duration of research to be conducted outside India	
(8)	**If it is for emergency purpose, please specify the details**	

Declaration

I, son/daughter/wife/husband of_____aged_____residing at___(full address) in holding a permanent ID Number (Aadhaar card/passport ,etc.)hereby declare that all the information provided above is correct and true.

I hereby affirm that the biological resources shall be used only for the purposes as stated in the application.
I shall not share/provide/part with/ leave behind any biological resource at my collaborator's facility/ laboratory without the approval of the National Biodiversity Authority.

I, along with my supervisor and collaborator, individually and severally declare that we shall not put to commercial utilisation, nor shall seek any intellectual property rights claim based on the biological resources and traditional knowledge associated thereto used in this research.

In case such a situation arises, we shall apply to the National Biodiversity Authority to seek prior approval. Results, process, products, or other outcomes arising out of this activity shall be shared with the National Biodiversity Authority during and upon completion of research intended along with copies of the relevant documents and publications.

Signature: ……

Date:……

Place: ……..……..

Declaration by the Supervisor/Head of Institution

I, working as in(Name of institution) confirm that the details provided by Mr/ Dr/ Mrs/ Ms. Are true and correct.

Date:……

Place:……

Signature:…..…..……

Designation:.…….……

Official Seal:…….……

Declaration by the Recipient/Collaborator

I, working as in (Name of institution/ Organisation) hereby affirm that I or my institution/ organisation shall use the biological resources that were sent by …….. (Name of the institution) or being brought by Mr./Dr./Mrs./Ms …… for the purposes as stated in the application and the said biological resources shall be destroyed in full after the completion of the studies or upon completion of the studies the biological resources shall be sent back to the institution from where the biological resources were received as the case maybe, or as decided by the National Biodiversity Authority. I,or the institution I am associated with, shall not claim any ownership under instant application nor shall claim any intellectual property rights over the biological resources, derivatives or other such components without prior approval of the applicant, institution affiliated and the National Biodiversity Authority.

Signature:…….

Designation……..

Official Seal

FORM-14

{See section 50 of the Act and rule-22(1))}

Form of Memorandum of Appeal

BEFORE THE _____MINISTRY OF ENVIRONMENT, FOREST AND CLIMATE CHANGE, NEW DELHI

OR

NATIONAL BIODIVERSITY AUTHORITY (as the case may be)

(Memorandum of appeal under section 50 of the Biological Diversity Act, 2002)

Appeal No. _____of 20

_____

_____ Appellant

Vs.

_____

_____ Respondent(s) *(here mention the name and details of the Authority/Board/Council, as the case may be)*

The appellant wishes to prefer this memorandum of appeal against the order dated _____ passed by the respondent on the following facts and grounds:

1. FACTS:

(Here briefly mention the facts of the case):

2. GROUND:

(Here mention the grounds on which the appeal is being made) :

i)

ii)

iii)

3. RELIEF SOUGHT:

i)

ii)

iii)

4. PRAYER:

a) In the light of information given above, the appellant respectfully prays that the order/ decision of the respondent be quashed/set-aside.

b) The policy/guidelines/regulations framed by the respondent be quashed/modified/ annulled to the extent

_____

_____

Signature of the appellant

with seal

Address:

Place:_____

Dated:_____

VERIFICATION

I , the appellant do hereby declare that the information above is true to the best of my knowledge and belief.

Verified on ____day of_____.

Signature of the appellant With Seal

Address

Signature of the Authorised representative of the appellant

Enclosures: 1. Upload an authenticated copy of the order/direction/policy decision against which the appeal has been preferred.

FORM –15

{See section 50 of the Act and rule 22(4)}

FORMAT OF NOTICE FOR APPEARING FOR HEARING

BEFORE THE _____ MINISTRY OF ENVIRONMENT, FOREST AND CLIMATE CHANGE, NEW DELHI

OR

National Biodiversity Authority (as the case may be)

Appeal No. _____ of 20

Between :

_____

_____ Appellant(s)

Vs.

_____

_____ Respondents(s)

NOTICE

Please take notice that the above appeal filed by the appellant, against the order/direction/policy decision (give details) is fixed for hearing on _____ at _____

The copies of the appeal memorandum and other annexures filed along with the appeal are attached herewith for your reference.

Please note that if you fail to appear on said date (or other subsequent date as fixed) of hearing of the appeal, the appeal would be disposed of finally as *ex-parte.*

Authorised signatory on behalf of the Appellate Authority (Seal)

Date:

Place:

FORM- 16

{See section 61(b) of the Act and rule 24(19)(b)}

FORMAT OF NOTICE BY ANY PERSON/BENEFIT CLAIMER

By registered post with acknowledgement due

From

Shri _____

_____

_____

To,

_____

_____

_____

Sub: NOTICE UNDER SECTION 61(b) OF THE BIOLOGICAL DIVERSITY ACT, 2002

Whereas an offence under the Biological Diversity Act, 2002 has been committed/is being committed by……

2. I/We hereby give notice of thirty days under section 61(b) of Biological Diversity Act, 2002 of my/our intention to file a complaint in the court against …… for violation of the provisions of the Act.

3. In support of my/our notice, I am/we are enclosing herewith the following documents as evidence of proof:

1……

2……

3……

Place:_____

Dated:_____ Signature

EXPLANATION:

(1) In case the notice has to be given in the name of a company, documentary evidence authorising the person to sign the notice on behalf of the company shall be enclosed with the notice.

(2) Name and address of the alleged offender needs to be given. In case of use of biological resource/traditional knowledge/doing research/bio-survey and bio-utilisation/obtaining intellectual property right/patent without the approval of the Authority, the details thereof and the commercial utilisation, if any, that has occurred, may be furnished.

(3) Documentary evidence shall include photograph(s), technical report(s), etc., for enabling enquiry into the alleged violation/offence.

[F. No. CS-C12018/3/2020-CS-III]

RAGHU KUMAR KODALI, Scientist 'G'

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